

From: [Randolph M. Fritz](#)
To: [ostp-ai-rfi](#)
Subject: [External] Re: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan
Date: Sunday, March 16, 2025 12:08:46 AM

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If by "artificial intelligence" is meant generative language and image models, I see no reason why any regulations should be abrogated, and many reasons why they should be maintained and extended. The industry is doing "fine" (except that no-one actually seems to want these things except for criminals and students wishing to avoid learning.) If the goal is to abandoned copyright protections for works of authorship I am utterly opposed to that. These models are inherently, not creative; they depend on creative work, and to the extent that they replace the efforts of actual creative people, they are a negative. On the contrary, we need more and better regulation of copyright and "AI." As I wrote to the copyright office over two years ago, when a painter creates a work, the brush does not hold the copyright, the painter holds the copyright. It is not different with "artificial intelligence." If a painter copies someone else's style, that's a copyright violation. It doesn't matter what tool the painter uses. If someone uses an AI model to copy an artist's writing or drawing style and publishes the result, if this does not fall under fair use, that's a copyright violation - it doesn't matter what tool is used.

Because "artificial intelligence" is such an efficient violator of copyright, because there is no way to identify an AI model's sources, and because it is impossible to delete a work from an AI model it is both appropriate to insist on an opt-in model for works used to train an AI model and insist that model builders keep records of what works are used to train their AI models.

Because AI models are statistical models, their output is not reliably accurate; like a human simply making up writing for its sound and persuasiveness, they can be wrong but persuasive. AI models can also "hallucinate" - produce content that is similar to that of a delusional or brain-damaged person. It is therefore important that AI output be flagged, lest people trust it and endanger themselves.

Beyond that, I do not believe any regulations should be abandoned? *Our regulations are written in blood* and I do not want to see blood spilled or the environment further damaged to pursue an expensive and so far as I can tell, not all that valuable technology. If the applications of such things are for instance, medical diagnosis or various sorts of pattern recognition jobs, what deregulation is needed?

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